

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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LATIK SHORT,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE DETECTIVE THOMAS
LODICO, SHIELD NO. 455, LT. JOHN COSTIN,
UNDERCOVER POLICE OFFICER "UC 0338", JOHN DOES
#1-4

Defendants.

AMENDED SUMMONS

Index# 519260/2018

----- X
To the above named Defendants:

THE CITY OF NEW YORK, POLICE DETECTIVE THOMAS LODICO,
SHIELD NO. 455, LT. JOHN COSTIN, UNDERCOVER POLICE OFFICER
"UC 0338", JOHN DOES #1-4

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Kings County as the place of trial. The basis of venue is the place in which the harm occurred.

Dated: Brooklyn, New York
January 10, 2019



Stoll, Glickman & Bellina, LLP

Attorney for Plaintiff

By: Nicholas Mindicino, Esq.
300 Cadman Plz. W., 12th Fl.
Brooklyn, NY 11201
718 852 3710

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

----- X

LATIK SHORT,

PLAINTIFF

-against-

FIRST AMENDED
COMPLAINT AND
JURY DEMAND

THE CITY OF NEW YORK, POLICE DETECTIVE
THOMAS LODICO, SHIELD NO. 455, LT. JOHN
COSTIN, UNDERCOVER POLICE OFFICER "UC
0338", JOHN DOES #1-4

Docket # 519260/2018

DEFENDANTS

----- X

Plaintiff Latik Short, by his attorneys, Stoll, Glickman & Bellina, LLP, for his complaint allege as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief through 42 U.S.C. §1983 for the violation of his First, Fourth and Fourteenth Amendment rights.

2. The claim arises from a September 21, 2016 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to false arrest and malicious prosecution.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and under 42 U.S.C. §1983 and §1988 and the laws and Constitution of the State of New York.

5. The jurisdiction of this court is predicated upon 28 U.S.C. §§ 1331, 1343(a)(3) and (4),

1367(a) and the doctrine of pendent jurisdiction.

PARTIES

6. Plaintiff Latik Short is a resident of Kings County in New York State.

7. The City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department (or “NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

8. Police Detective Thomas Lodico, Shield No. 455, and Lt. John Costin were, at all times here relevant, police officers of the NYPD, and as such were acting in the capacity of agent, servant and employee of the City of New York. On information and belief, defendants Lodico and Costin was involved in the illegal arrest of plaintiff and/or failed to intervene in the actions of their fellow officers. Defendants Lodico and Costin are sued in their individual capacity.

9. Undercover Police Officer “UC 0338” is a member of the NYPD who works as an undercover officer, and whose real name is therefore kept confidential. Undercover UC 0338 was at all times here relevant a police officer of the NYPD, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On information and belief, defendant UC 0338 was involved in the illegal arrest of plaintiff and/or failed to intervene in the actions of his fellow officers. Defendant Undercover UC 0338 is sued in his individual capacity.

10. John Does #1-4, are individuals whose name are currently unknown to plaintiff, are

employees of the NYPD, and are sued in their individual capacities. John Does 1-4 were NYPD officers assigned to the Narcotics Team working with defendants Lodico, Costin and UC 0338 on September 21, 2016.

11. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL ALLEGATIONS

12. At approximately 5:45 p.m. on September 16, 2016, Plaintiff Latik Short was near the intersection of Jefferson Avenue and Saratoga Avenue in Brooklyn, NY.

13. Plaintiff was in a store located in the area.

14. Defendant police officers entered the store and arrested plaintiff.

15. Plaintiff had not committed any crime.

16. Another man, identified herein as "A.J." was arrested by the defendants a few minutes after plaintiff.

17. Plaintiff was taken to a police precinct. He was then transported to Criminal Court to await arraignment.

18. Upon information and belief, the defendant police officers were members of a narcotics enforcement team on the date of the incident, and were engaged in narcotics "buy and bust" operations at the time of plaintiff's arrest.

19. Defendant Costin was the commander of the narcotics team. Upon information and belief, Defendant Costin made the decision to arrest plaintiff.

20. Defendant Lodico was the arresting officer for plaintiff. Upon information and belief, Defendant Lodico took plaintiff into physical custody, processed his arrest, prepared arrest

paperwork related to his arrest, and coordinated with the District Attorney's office related to the prosecution of plaintiff.

21. Following the arrest, UC 0338 issued a "Buy Report" regarding the events of September 21, 2016. UC 0338 understood that his Buy Report would be distributed to fellow officers as well as the District Attorney's office, and used to determine what if any charges should be brought against plaintiff.

22. In his Buy Report, UC 0338 made allegations regarding the plaintiff. Specifically he alleged that after UC 0338 gave A.J. \$20 of pre-marked "buy money" to obtain marijuana, A.J. then walked towards the plaintiff, that the two of them met outside a store, walked into a store together, "touched hands", and then A.J. returned to the undercover and a bag of "green leafy substance."

23. With respect to plaintiff's alleged part in UC 0338's story, these allegations were false. Plaintiff was in the store for the entirety of this time, and did not meet anyone outside the store. He never interacted with A.J. in any way prior to his arrest, and certainly never touched hands with A.J. or exchanged anything with him.

24. No contraband was found on plaintiff or in any area near him, nor was any marked buy money recovered from plaintiff or any area near him.

25. Defendants Lodico, Costin, UC 0338 and John Does #1-4 were aware that plaintiff was not the man who "touched hands" with A.J., and did not possess any contraband or buy money. They nevertheless participated in and/or consented to his arrest.

26. Plaintiff was taken to a Police Precinct and then to Kings County Criminal Court to await arraignment.

27. On September 22, 2016 Plaintiff was arraigned on charges of sale and possession of

marijuana. He was released on his own recognizance.

28. Plaintiff was required to appear in Criminal Court approximately eight times over the next year.

29. Finally on September 6, 2017 all charge against plaintiff were dismissed.

30. Plaintiff neither possessed nor sold marijuana on September 21, 2016, and there was no factual basis from which the defendant officers could infer he had done so.

31. Defendants lacked probable cause or reasonable suspicion to believe plaintiff had been involved in any illegal activity.

DAMAGES

32. As a direct and proximate result of the acts of defendants, Plaintiff suffered the following injuries and damages:

- a. Violation of his rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution;
- b. Violation of his rights to Due Process of Law under the Fourteenth Amendments to the United States Constitution;
- c. Loss of liberty;
- d. Emotional suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety.

FIRST CAUSE OF ACTION

(42 U.S.C. § 1983 – as to Individual Defendants)

33. The above paragraphs are here incorporated by reference.

34. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC § 1983.

35. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. Defendants' conduct also deprived Plaintiff of his right to due process of law, pursuant to the Fourteenth Amendment to the United States Constitution.

36. Defendants falsely arrested and maliciously plaintiff by arresting and causing him to prosecuted, despite lacking probable cause to believe he had committed any crime.

37. Defendants' conduct deprived plaintiff of his right to a fair trial, pursuant to the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Defendants were aware or should have been aware that they presented false information to the District Attorney's Office which was used to prosecute plaintiff. As a result of those false statements, plaintiff was charged with offenses he had not committed.

38. By presenting false evidence to the District Attorney's office, defendants deprived plaintiff of his right to a fair trial.

39. Plaintiff has been damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION

(42 U.S.C. § 1983 – Municipal And Supervisory Liability as to Defendant City of New York)

40. The above paragraphs are here incorporated by reference

41. The City is liable for the damages suffered by Plaintiff as a result of the conduct of its employees, agents, and servants, in that: after learning of its employees' violation of Plaintiffs' constitutional rights, the City failed to remedy the wrong; it has created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue; and it has been grossly negligent in managing subordinates who caused the unlawful condition or event. The City has been alerted to the regular use of excessive force and false arrests by its police officers, but has nevertheless exhibited deliberate indifference to such excessive force and

false arrests; that deliberate indifference caused the violation of Plaintiff's constitutional rights in this case.

42. The City knew of, or had reason to know that Defendant Costin was likely to violate the rights of persons such as Plaintiff. Upon information and belief, the City was aware that defendant Costin has previously violated the rights of individuals as a result of lawsuits filed against defendant Costin in Federal District Court for the Eastern District of New York, such as 11-cv-03126-ERK-RML, *White v. City of New York et al.*, 11-cv-04874-KAM-LB, *Brewster v. The City of New York et al.*, 12-cv-00243-SLT-RLM, *Clark et al v. City of New York et al.*, 12-cv-00251-KAM-RER, *Croney v. City of New York et al.*, 12-cv-00253-KAM-RER, *Booker v. City of New York et al.*, 12-cv-00255-KAM-RER, *Cornwell v. City of New York et al.*, 12-cv-00257-KAM-RER, *Deleon v. City of New York et al.*, 12-cv-04190-WFK-RER, *Young v. City of New York et al.*, 12-cv-06165-SJ-JMA, *Legrand et al v. The City Of New York. et al.*, 13-cv-01972-RJD-CLP, *Foy v. The City of New York et al.*, 13-cv-01973-MKB-CLP, *Durant v. City of New York et al.*, 14-cv-00348-SJ-SMG, *Legrand v. Costin et al.*, 14-cv-01377-NGG-RLM, *Greaves v. City of New York et al.*, 15-cv-02906-PKC-RML, *Legrand v. Rahman et al.*, and 16-cv-04438-KAM-CLP, *Pruitt v. The City of New York et al.*

43. The City knew of, or had reason to know that Defendant Lodico was likely to violate the rights of persons such as Plaintiff. Upon information and belief, the City was aware that defendant Lodico has previously violated the rights of individuals as a result of lawsuits filed against defendant Lodico in Federal District Court for the Eastern District of New York, such as 12-cv-01825-FB-SMG, *Stephens v. City of New York et al.*, 13-cv-00891-ENV-JMA, *Armstead v. New York City Police Department et al.*, 14-cv-04620-BMC, *Small v. The City of New York et al.*, 15-cv-01011-NGG-PK, *Hillard et al v. City of New York et al.*, 15-cv-06115-MKB-VMS,

Lopez v. City of New York et al., 15-cv-06326-RRM-RLM, *Wilson v. The City of New York et al.*, and 18-cv-01830-AMD-SJB, *Gowins v. The City of New York et al.*

44. Despite the previous claims of wrong-doing by these officers, the City has failed to take any steps to prevent future wrong-doing by these officers. This is representative of the City's ongoing failures to address police misconduct.

45. The City's continuing failure to deter police misconduct has led to an increase in the number of lawsuits for repeat routine misconduct by the same officers, same units, and same precincts.

46. The number of claims against the NYPD doubled between 2004 and 2014, to a record high of 9,570 lawsuits filed in 2012. The suits cost taxpayers more than \$1 billion dollars during that time period.¹

47. From 2009-2014, New York City paid out more nearly \$500 million to settle NYPD-related cases.² In fiscal year 2012, so-called "police action claims," which are claims that result from false arrest or imprisonment, police shootings, excessive use of force, assault, or failure to protect, cost the City \$64.4 million.³ In fiscal year 2011, the City paid \$60.2 million in police action claims.⁴

¹ Barry Paddock, Rocco Parascandola, John Marzulli, & Dareh Gregorian, *Exclusive: Detective is NYPD's most-sued cop, with 28 lawsuits filed against him since 2006*, N.Y. DAILY NEWS, Feb. 16, 2014, <http://www.nydailynews.com/new-york/lawsuits-nypd-double-decade-costing-taxpayers-1b-article-1.1615919#ixzz2ttDX4ZkE>; see also Colleen Long & Jennifer Peltz, Associated Press, *Nearly \$1B in NYC police payouts*, Yahoo! News (October 14, 2010, 7:44 PM), <http://news.yahoo.com/ap-investigation-nearly-1b-nyc-police-payouts.html> (reporting that, in the decade ending in 2010, the City paid out nearly one billion dollars to resolve claims against the NYPD).

² Caroline Bankoff, *The City Has Paid Almost Half a Billion Dollars in NYPD-Related Settlements Over the Past 5 Years*, NYMag.com, Oct. 12, 2014, <http://nymag.com/daily/intelligencer/2014/10/428-million-in-nypd-related-settlements-paid.html>.

³ City of New York, Office of the Comptroller Claims Report FY 2012, 30, June 4, 2013, <https://www.documentcloud.org/documents/1375759-fy-2012-claims-report.html>.

⁴ *Id.*

48. The widely held assumption is that civil rights lawsuits deter police misconduct. “The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails.” *Wyatt v. Cole*, 504 U.S. 158, 161, (1992) (citing *Carey v. Phipps*, 435 U.S. 247, 254-257, (1978)). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” *Hudson v. Michigan*, 547 U.S. 586, 598 (2006) (citing *Corr. Servs. Corp. v. Malesko*, 534 U.S. 61, 70 (2001) and *Nix v. Williams*, 467 U.S. 431, 446, (1984)).

49. However, the City of New York has isolated NYPD officers from accountability for civil rights lawsuits by routinely indemnifying officers who violate the constitutional rights of citizens against all liability. The result is that civil rights lawsuits have no deterrent value to the City, the NYPD, or NYPD officers. “It is almost axiomatic that the threat of damages has a deterrent effect, surely particularly so when the individual official faces personal financial liability.” *Carlson v. Green*, 446 U.S. 14, 21, (1980) (citing *Imbler v. Pachtman*, 424 U.S. 409, 442 (1976)) [footnote omitted].

50. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even when the same officers are named in numerous lawsuits. In 1999, then-Comptroller Alan Hevesi reported that there was a “total disconnect” between the settlements of even substantial civil claims and NYPD action against officers. That total disconnect has remained fully in place since 1999. The result is a system in which the City pays vast sums of money to settle claims of constitutional violations, but the NYPD does nothing to investigate or address the underlying causes of such violations.

51. Additionally, according to a report of the New York City Bar Association issued in 2000, the City has isolated the Law Department from the discipline of police officers. Civil rights lawsuits against police officers have no impact on the officers' careers, regardless of the officers' lawsuit liability, even after multiple lawsuits.

52. At a City Council hearing on December 12, 2009, and on other occasions, the City Council, Government Operations Committee has been alerted to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability. Nonetheless, the City Council has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units, and precincts are disproportionately responsible for New York City civil rights lawsuits.

53. The event underlying Plaintiffs' factual allegations was not an isolated incident. The City has been aware for some time, from lawsuits, Notices of Claim, complaints filed with the Civilian Complaint Review Board ("CCRB"), City Council hearings, newspaper reports, cases resulting in declined prosecutions and dismissals, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of NYPD officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

54. Moreover, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights litigation, individual officers repeatedly named in lawsuits, incidents repeatedly occurring in the

same precinct, and patterns of misconduct that arise in civil rights litigation has caused the constitutional violations against Plaintiffs.

55. The City has purported to attempt to address police officers' abuse of authority, in part through the creation of the CCRB. However, the CCRB has proved vastly inadequate for that purpose.

56. The CCRB, a City police oversight agency, often finds complainants lack credibility based in part on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to the CCRB. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD upon finding misconduct by an officer.

57. The NYPD, once receiving a substantiated complaint by the CCRB, routinely fails to adequately discipline officers for misconduct. Even as focus on police misconduct has increased in recent years, and new leadership has promised sweeping operational changes, the NYPD still routinely fails to discipline its officers. According to a study conducted by the WNYC, in 2012, police officers received no discipline in 104 cases (40.3%) of the substantiated complaints processed (258).⁵ In 2013, the NYPD dropped 28.3% of the substantiated complaints without any disciplinary action.⁶ In 2014, it dropped 24.5%.⁷

⁵ WNYC, *Police Punishment: CCRB vs NYPD*, <http://project.wnyc.org/ccrb/> (last visited July 23, 2015).

⁶ *Id.*

58. Due to the continuing failures of the CCRB, many abuses of authority by police officers go unreported. Even when abuse is reported, police officers rarely, if ever, are disciplined. This pattern is well-known to NYPD officers; as a result, officers feel free to abuse their authority with little or no fear of repercussions. Such lack of accountability has permitted, and even encouraged, frequent and widespread violations of the civil rights of individuals at the hands of NYPD officers. Furthermore, the lack of accountability contributed to the defendant police officers' actions described above in that the officer defendants felt insulated from any repercussions for their actions regarding the Plaintiff.

59. The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which the police commissioner has done on many occasions. This entire procedure provide so many opportunities for meritorious complaints of false arrests to be dismissed or disregarded that there is no credible, effective oversight of police department employees, despite an apparently elaborate set of oversight mechanisms.

60. The City has also been alerted to the regular use of stop and frisks by its police officers, which disproportionately target people of color, despite the of lack criminal evidence that such stop and frisks actually produce, and despite the humiliation, inconvenience, and constitutional violations that the majority of law-abiding people, mostly in communities of color, suffer as a result.

61. Even as the use of stop and frisk has declined precipitously in recent years – in large

⁷ *Id.*

part due to the federal class action lawsuit *Floyd, et al. v. City of New York, et al.*, 08-CV-1034 (SAS) – the police have continued to use the policing tactic in a severely racially disproportionate manner, and for the improper purpose of meeting “performance goals” (arrest quotas). According to data collected by the New York Civil Liberties Union (“NYCLU”), in 2014, New Yorkers were stopped by the police 46,235 times. Of the people stopped: 38,051 were totally innocent of any crime (82%); 24,777 were Black (55%); 12,662 were Latino (29%); and 5,536 were white (12%).⁸

62. The City is also aware that the misconduct does not stop at the regular use of stop and frisks to violate the civil rights of innocent people. For example, the NYCLU reported that more than 85% of summonses for Open Container were given to Black and Latino New Yorkers, whereas white recipients made up merely 4%.⁹ The grossly disproportionate issuance of summonses to New Yorkers of color led one Kings County judge to note that he could not recall ever having arraigned a white defendant on an open container charge.¹⁰ Police officers have repeatedly told New York City news investigations that their supervisors pressure them into reaching “performance goals” or arrest quotas, resulting in the violation of innocent New Yorker’s civil rights.¹¹

63. The City’s inability to prevent its officers from abusing the stop and frisk policy are

⁸ See NYCLU, *Stop and Frisk Campaign: About the Issue*, <http://www.nyclu.org/content/stop-and-frisk-data> (last visited July 22, 2015).

⁹ See NYCLU, *Testimony Before City Council Public Safety & Courts and Legal Services Committees On Summons Court Operations and Impact*, <http://www.nyclu.org/content/testimony-city-council-public-safety-courts-and-legal-services-committees-summons-court-oper>.

¹⁰ *People v. Figueroa*, 36 Misc.3d 605, 608 (Kings Co. 2012).

¹¹ See Jim Hoffer, *NYPD Officer Claims Pressure to Make Arrests*, WABC News (Mar. 2, 2010, 10:37 PM), <http://7online.com/archive/7305356/> and Jim Hoffer, *Kelly Responds to Our NYPD Quotas*, WABC News (May 25, 2010, 3:31 PM), <http://7online.com/archive/7461355/>.

emblematic of the City's continuing failures to exercise adequate control over the NYPD, and to prevent police officers from abusing their authority. Such failures have led to further abuse of authority by police officers, including the incident underlying Plaintiff's Complaint.

64. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

65. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. As the Honorable Jack Weinstein, United States District Court Judge of the Eastern District of New York, has written:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration—through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department—there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

Colon v. City of New York, No. 09-CV-8, 2009 WL 4263362, at *2 (E.D.N.Y. Nov. 25, 2009).

66. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This

failure and these policies caused the officers in the present case to violate Plaintiff's civil rights, without fear of reprisal.

67. Plaintiff has been damaged as a result of the deliberate indifference of the Defendant City.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally, as follows:

A. In favor of plaintiff in an amount to be determined by a jury for each of plaintiff's causes of action;

B. Awarding plaintiff punitive damages in an amount to be determined by a jury;

C. Awarding plaintiff reasonable attorneys' fees, costs and disbursements of this action; and

D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

DATED: January 10, 2019
Brooklyn, New York

TO: City of New York
Corporation Counsel Office
100 Church Street
New York, NY 10007

Detective Thomis Lodico

Lt. John Costin

Undercover Officer UC 0338

Respectfully yours,



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